

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Noah Kim	Team: Squad #09	CCRB Case #: 202004976	☐ Force ☒ Discourt. ☒ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 07/11/2020 3:44 PM, Monday, 11/09/2020 12:00 AM	Location of Incident: Over the phone	18 Mo. SOL 5/4/2022	Precinct: 34
Date/Time CV Reported Sat, 07/11/2020 4:40 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 07/11/2020 4:40 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Ismael Perez-Ortiz	14794	962682	034 PCT
2. POM Howard Peralta	02064	934052	034 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Ismael Perez-Ortiz	Abuse: Police Officer Ismael Perez-Ortiz refused to provide his name to § 87(2)(b)	A . Substantiated
B . POM Ismael Perez-Ortiz	Abuse: Police Officer Ismael Perez-Ortiz refused to provide his shield number to § 87(2)(b)	B . Substantiated
C . POM Ismael Perez-Ortiz	Discourtesy: Police Officer Ismael Perez-Ortiz acted discourteously toward § 87(2)(b)	C . Substantiated
D . POM Howard Peralta	Abuse: Police Officer Howard Peralta refused to provide his name to § 87(2)(b)	D . Substantiated
E . POM Howard Peralta	Abuse: Police Officer Howard Peralta refused to provide his shield number to § 87(2)(b)	E . Substantiated
F . POM Howard Peralta	Discourtesy: Police Officer Howard Peralta acted discourteously toward § 87(2)(b)	F . Substantiated
G . POM Ismael Perez-Ortiz	Untruthful Stmt.: Police Officer Ismael Perez-Ortiz provided a false official statement to the CCRB.	G . Substantiated

Case Summary

On July 11, 2020, § 87(2)(b) filed this complaint with the CCRB via website correspondence number § 87(2)(b) [BR01]. This complaint was originally assigned to Investigator Amanda Field but was reassigned to Investigator Noah Kim on September 25, 2020.

On July 11, 2020, at approximately 3:44 p.m., § 87(2)(b) called the 34th Precinct stationhouse and spoke with Police Officer Ismael Perez-Ortiz, requesting to speak with Sergeant Zulfiqar Ahmed of the 34th Precinct. § 87(2)(b) asked PO Perez-Ortiz for his name and shield number, but after PO Perez-Ortiz provided his name, § 87(2)(b) asked PO Perez-Ortiz to repeat himself as he did not understand him. PO Perez-Ortiz then disconnected the call (**Allegation A: Abuse of Authority – Refusal to provide name, substantiated; Allegation B: Abuse of Authority – Refusal to provide shield number, substantiated; Allegation C: Discourtesy – Action, substantiated**). § 87(2)(b) immediately called the 34th Precinct stationhouse back. Police Officer Howard Peralta of the 34th Precinct answered, and § 87(2)(b) asked for his name and shield number. PO Peralta did not answer him and disconnected the call (**Allegation D: Abuse of Authority – Refusal to provide name, substantiated; Allegation E: Abuse of Authority – Refusal to provide shield number, substantiated; Allegation F: Discourtesy – Action, substantiated**).

During his CCRB interview, on November 9, 2020, PO Perez-Ortiz provided a false official statement to the investigation (**Allegations G: Untruthful Statement – False official statement, substantiated**).

§ 87(2)(b) was not arrested or issued a summons in relation to this incident. Body worn camera video of the incident in question was not obtained, as the officers were not required to activate their cameras. § 87(2)(b) provided audio recordings of his calls to the 34th Precinct stationhouse [BR 02] [BR03].

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Ismael Perez-Ortiz refused to provide his name to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Ismael Perez-Ortiz refused to provide his shield number to § 87(2)(b)

Allegation (C) Discourtesy: Police Officer Ismael Perez-Ortiz acted discourteously toward § 87(2)(b)

It is undisputed that there were no other officers with the last name Perez-Ortiz in the 34th Precinct at the time of the incident.

§ 87(2)(b) stated that on July 11, 2020, at approximately 3:44 p.m., he called the 34th Precinct stationhouse and requested to speak to Sgt. Ahmed [BR04]. PO Perez-Ortiz answered the phone and § 87(2)(b) asked for his name. PO Perez-Ortiz provided his name but stated it too quickly for § 87(2)(b) to understand. § 87(2)(b) asked for PO Perez-Ortiz to repeat his name slower and stated that he wanted to write it down. PO Perez-Ortiz did not answer and disconnected the call.

An audio recording of the phone call was provided by § 87(2)(b) [BR02]. At 01:22 minutes, PO Perez-Ortiz answers the phone and states, "The 34th Precinct, Perez-Ortiz speaking." At 03:02 minutes, § 87(2)(b) requests PO Perez-Ortiz's name and shield number. PO Perez-Ortiz states "Yeah, I already told you, it's Officer Perez-Ortiz of the 34th Precinct." § 87(2)(b) replies, "That goes very fast. I need to write it down." There is then the sound of a receiver hanging up and a dial tone.

PO Perez-Ortiz stated that he did not recall speaking with § 87(2)(b) over the phone on July 11, 2020 [BR05]. The audio recording was played for PO Perez-Ortiz. He confirmed that the name PO Perez-Ortiz is provided twice in the audio, but he was not sure if it was him speaking on the phone call. PO Perez-Ortiz stated that no other officers in the 34th Precinct had the same last name as him. The audio recording did not assist in refreshing PO Perez-Ortiz's independent recollection of the incident.

Patrol Guide Procedure 203-09 states that when an officer's name and shield number is requested, they must clearly provide the information and allow ample time for the information to be noted [BR06].

Patrol Guide Procedure 200-02 states that NYPD officers are tasked with respecting the dignity of each individual and rendering services with courtesy [BR07].

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, and C** be closed as **substantiated**.

Allegation (D) Abuse of Authority: Police Officer Howard Peralta refused to provide his name to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Howard Peralta refused to provide his shield number to § 87(2)(b)

Allegation (F) Discourtesy: Police Officer Howard Peralta acted discourteously toward

§ 87(2)(b) -

§ 87(2)(b) testified that after the first call referenced above on July 11, 2020, he immediately called the 34th Precinct back and the same officer answered [BR04]. § 87(2)(b) asked the officer for their name and shield number, but the officer did not respond and disconnected the call.

An audio recording of phone call was provided by § 87(2)(b) [BR03]. At 01:10 minutes, the phone is answered and "3-4 Precinct, Officer Peralta speaking, how may I help you?" is heard. § 87(2)(b) asks for the officer's name and shield number, but the officer disconnects the phone call.

During his CCRB statement, PO Peralta stated that he did not recall speaking with § 87(2)(b) [BR08]. The above referenced audio recording was played for PO Peralta between 01:07 and 01:14. After the recording was played a second time for PO Peralta, he stated that the voice of the officer answering the phone in the audio recording was his. The recording was then played a third time between 01:07 and 01:20 and PO Peralta stated that the audio recording did not independently refresh his recollection of the incident. PO Peralta did not recall refusing to provide his name or shield number to § 87(2)(b). He did not recall disconnecting the call while speaking with § 87(2)(b).

The investigation determined that PO Peralta did not state his name clearly when he said it upon answering § 87(2)(b) second call, at 1:10 into the audio [BR03].

Patrol Guide Procedure 203-09 states that when an officer's name and shield number is requested, they must clearly provide the information and allow ample time for the information to be noted [BR06].

Patrol Guide Procedure 200-02 states that NYPD officers are tasked with respecting the dignity of each individual and rendering services with courtesy [BR07].

PO Peralta failed to provide his name clearly and provide his shield number to § 87(2)(b) when they were requested and by not repeating it when asked, § 87(2)(g)

Therefore, it is recommended that **Allegations D, E, and F** be closed as **substantiated**.

Allegation (G) Untruthful Statement: Police Officer Ismael Perez-Ortiz provided a false official statement to the CCRB.

§ 87(2)(b) provided an audio recording of his phone call answered by PO Perez-Ortiz [BR02]. At 01:22 minutes, PO Perez-Ortiz answers the phone and states, "The 34th Precinct, Perez-Ortiz speaking." At 03:02 minutes, § 87(2)(b) requests PO Perez-Ortiz's name and shield number. PO Perez-Ortiz states "Yeah, I already told you, it's officer Perez-Ortiz of the 34th Precinct."

The audio recording was played for PO Perez-Ortiz during his CCRB interview on November 9, 2020 [BR05]. He confirmed that the name PO Perez-Ortiz is provided twice in the audio but was not sure if it was him speaking on the phone call. PO Perez-Ortiz stated that no other officers in the 34th Precinct had the same last name as him.

Administrative Guide 304-10 establishes that a statement made by a member of the service that is known to be untrue and is material to the outcome of an investigation is a false official statement [BR11].

By confirming that the officer on the phone identified themselves as "Perez-Ortiz" twice and that he was the only officer with that name at the command § 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
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- PO Perez-Ortiz has been a member of service for four years and has been the subject in one other CCRB complaint and two allegations, of which both were substantiated. § 87(2)(g)
 - CCRB 201808324 involved substantiated allegations of Discourtesy: Word § 87(2)(b) imposed instruction.
- PO Peralta has been a member of service for 17 years and has been the subject in four other CCRB complaints and four allegations, of which one allegation was substantiated. § 87(2)(g)

§ 87(2)(g)

- 201903591 involved a substantiated allegation of Abuse – Forcible removal to the hospital. The Board recommended formalized training and the NYPD has not yet imposed discipline.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 13, 2021, the FOIL inquiry with the NYC Comptroller's office is still pending.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 9

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	<u>Wassim Abedrabbo</u>	<u>SI Wassim Abedrabbo</u>	<u>11/01/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date